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PUBLIC SPEAKING

Lecture 29: Negotiations

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What is Negotiation

- Etymology – Latin: *neg* (Not) + *otium* (Leisure) i.e. not at leisure, or, business.
- A communicative process of resolving conflicts.
- Mediated through argumentation and persuasion to achieve a decision cordial to both the negotiating parties.
- A specialized skill relevant to diverse arenas – business, governance, diplomacy, day-to-day life.



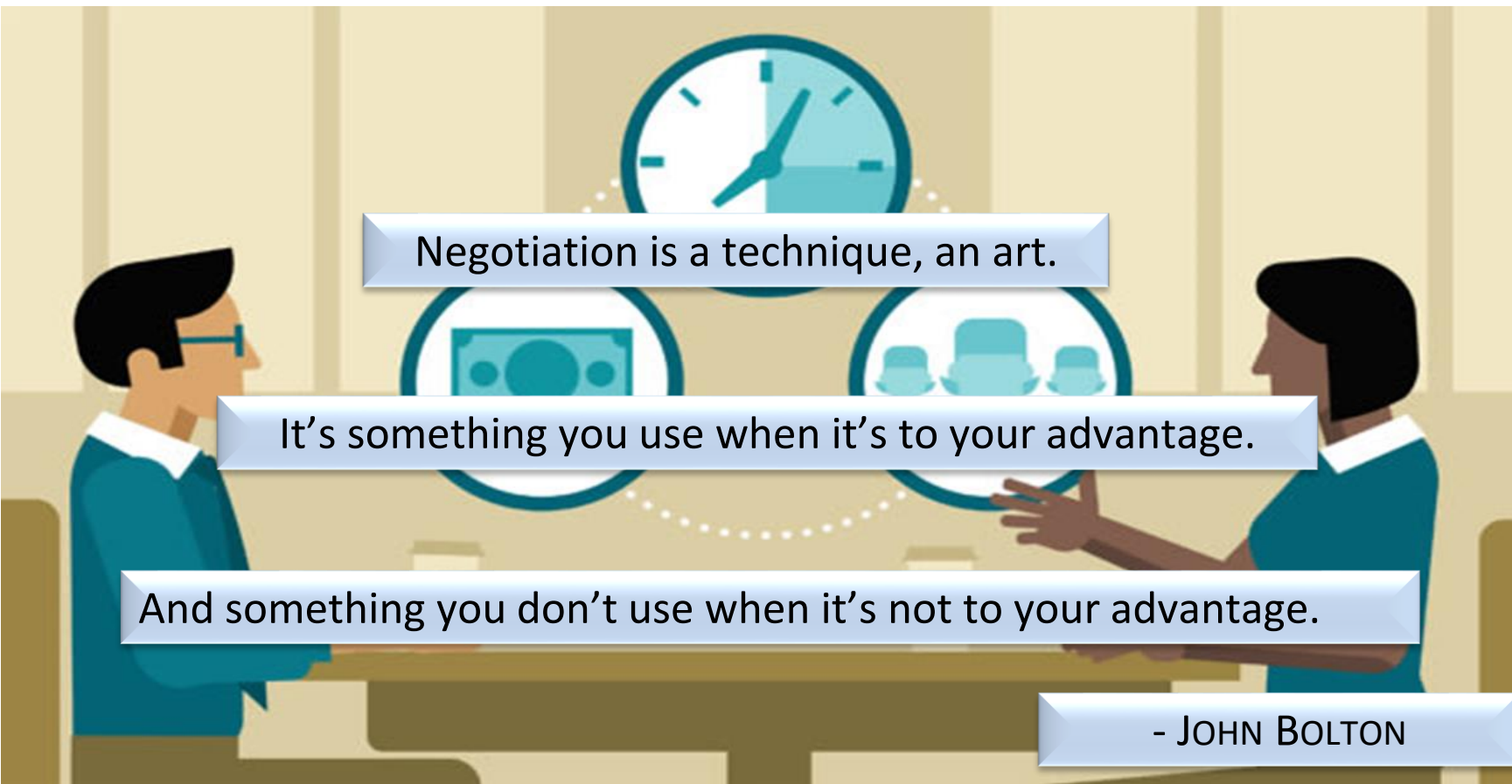
“Negotiation means getting the best of your opponent” (Marvin Gaye).

On Defining Negotiation

- Negotiation is any form of meeting or discussion in which you and the persons you are in contact with use argument and persuasion to achieve an agreed decision or action. - Alan Flower
- A process of combining conflicting positions into a common position under a decision rule of unanimity, a phenomenon in which the outcome is determined by the process. -- Zartman

“All government —
indeed, every human
benefit and enjoyment,
every virtue and every
prudent
act — is founded on
compromise and
barter.”

-Edmund Burke

An illustration of two people, a man and a woman, sitting at a table and negotiating. The man is on the left, wearing glasses and a blue sweater. The woman is on the right, wearing a blue sweater. Between them are three circular icons: a clock at the top, a banknote at the bottom left, and three cars at the bottom right. The background is a simple room with vertical lines.

Negotiation is a technique, an art.

It's something you use when it's to your advantage.

And something you don't use when it's not to your advantage.

- JOHN BOLTON

Approaches to Conflict Resolution



❑ Out of the several approaches to resolve a dispute between two conflicting parties, negotiation holds the crown of being the most sought after strategy.

❑ Merits of negotiation:

- ✓ A **voluntary** act
- ✓ Offers a feasible **win-win** situation
- ✓ Mediated not through authority but via **cordiality**.
- ✓ The most **tactical** and **strategic** method

To Negotiate or Not: The Alternatives

- ❑ Negotiation hinges upon the scheme of giving away something to get something. For instance, a mother negotiates with her daughter: If you drink your vegetable juice, then you can watch your favourite cartoon on TV.
- ❑ However, there are instances when approaches other than negotiation seem to fare better than either of the conflicting parties – **ATNA** (**Alternative to a Negotiated Agreement**): For example; strike, litigation, war, or avoidance.
 - **BATNA** – Best Alternative to a Negotiated Agreement
 - **WATNA** – Worst Alternative to a Negotiated Agreement
 - **MLATNA**- Most Likely Alternative to a Negotiated Agreement (Guasco & Robinson 2007)
 - **PATNA** – Probable Alternative to a Negotiated Agreement (Wade 2008)
 - **Plan B** – Possible courses of action to resort to, if negotiation fails.

WATNA

- Produces an outcome inferior to the negotiation gain
- Symbolizes the weaker party
- Negotiation: a better option

PLAN B

- More the number of plan Bs →
- Greater the flexibility of the party →
- Lesser the vulnerability

BATNA

- Produces superior outcome than the gain by negotiation.
- Source of power.
- If BATNAs are likely, don't go for negotiation.

An Example

BATNA

Buy directly from other owners, cutting the cost of middlemen

WATNA

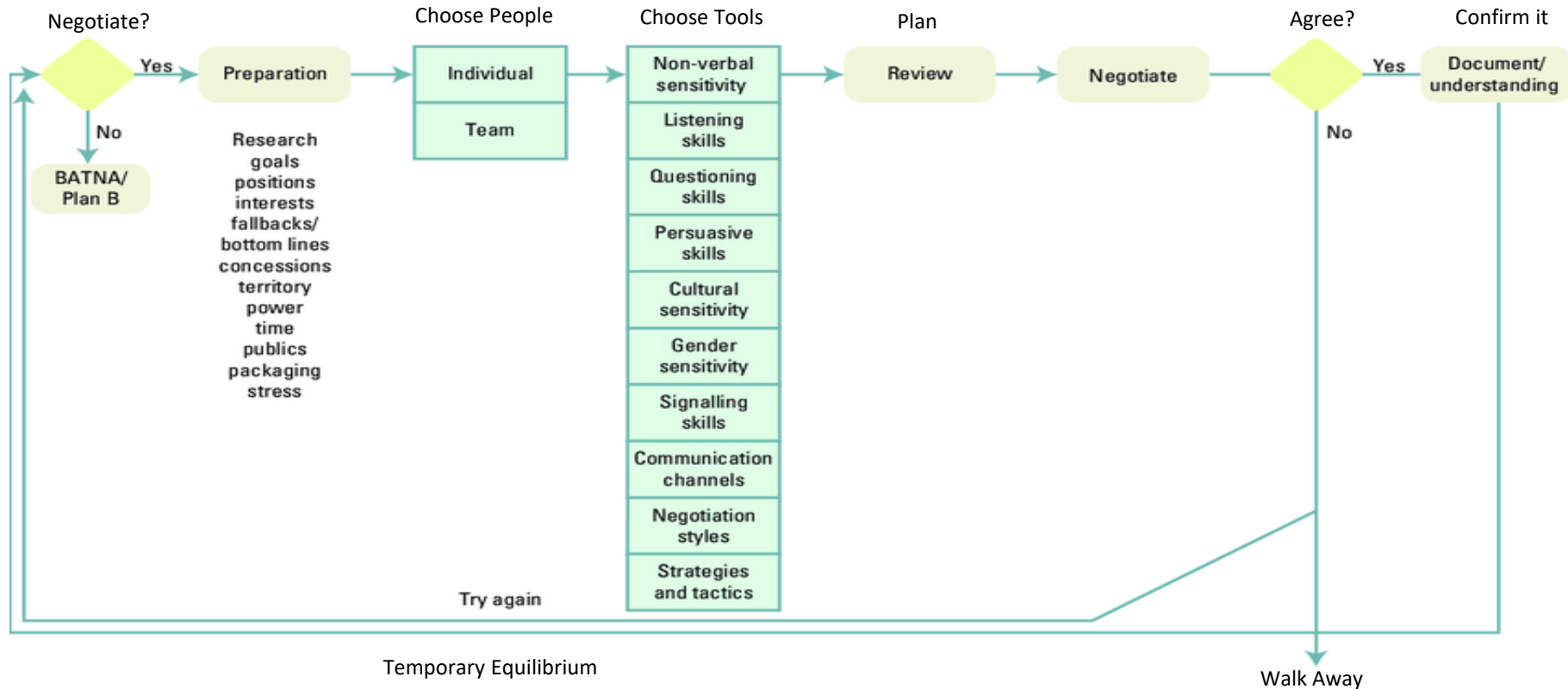
Keep driving the car, until it breaks down

I want to buy a used car

Plan B

Look out for budget options, like a new bike.

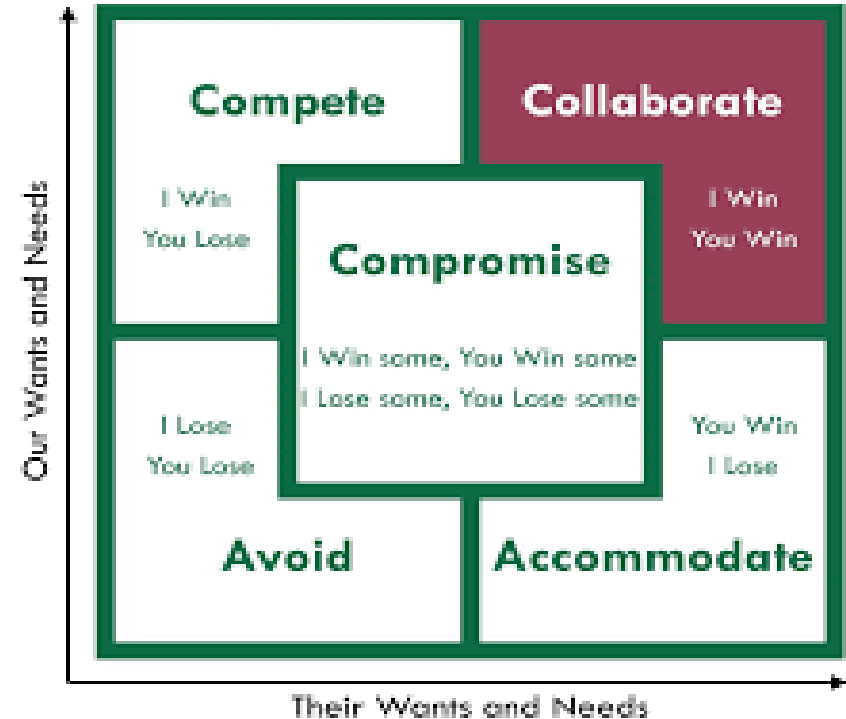
Eunson's Model of Negotiation



Styles of Negotiation

According to Thomas Kilmann's conflict mode model,

- ❖ **Competing**: The goal is to win; highly assertive and un-cooperative mode.
- ❖ **Collaborating**: The goal is to find a win-win solution; highly assertive as well as cooperative.
- ❖ **Compromising**: The aim is to land on a middle ground.
- ❖ **Accommodating**: Yielding mode; low assertiveness and high cooperativeness.
- ❖ **Avoiding**: The goal is to delay; low assertiveness and low cooperativeness.



Negotiation: Types



Distributive Negotiation

Positional or
Hard-Bargaining
Negotiation

I win - you lose
model

The parties try
to yield
minimum and
gain maximum

Unstable
outcomes, poor
relationship
between the
conceding parties

Integrative Negotiation

Interest-based
or Principled
Negotiation

I win – you win
model

The parties
focus on shared
interests to
achieve mutual
gains

More likely to
form cordial
relationship
between the
parties

Negotiation Strategy: The Preliminaries

1. **Research** – Probe into the concerned parties’ –
 - ✓ Facts and Figures
 - ✓ Strengths and Weaknesses
 - ✓ Goals and Objectives
 - ✓ BATNAs and Plan B
 - ✓ Fall-backs and Bottom-lines
 - ✓ Uncover Common Interests
2. **Plan** –
 - ✓ Develop your arguments in advance
 - ✓ Try to predict the counter-positions
 - ✓ Practice aloud the arguments and replies



Negotiating Territory	Advantages	Disadvantages
Our Place	Familiarity Greater control Ample access to resources	Responsibility of hospitality Risk of breach into privacy
Their Place	Lesser interruptions Easier to walk out Leverage of delaying	Higher Stress Cost-inefficient High vulnerability – lesser control
No Man's land	Both parties at equal footing More conducive to reach agreement	May lack resources May get complicated with a third-party involvement

4. Time –



Art of Negotiation: Skills and Stratagems

Communicative Skills

Speak naturally
Avoid jargons
Use short sentences
Give proper pauses

Listening and Questioning Skills

Be attentive to implicit meanings

Statements generate resistance, questions generate answers

Persuasive Skills

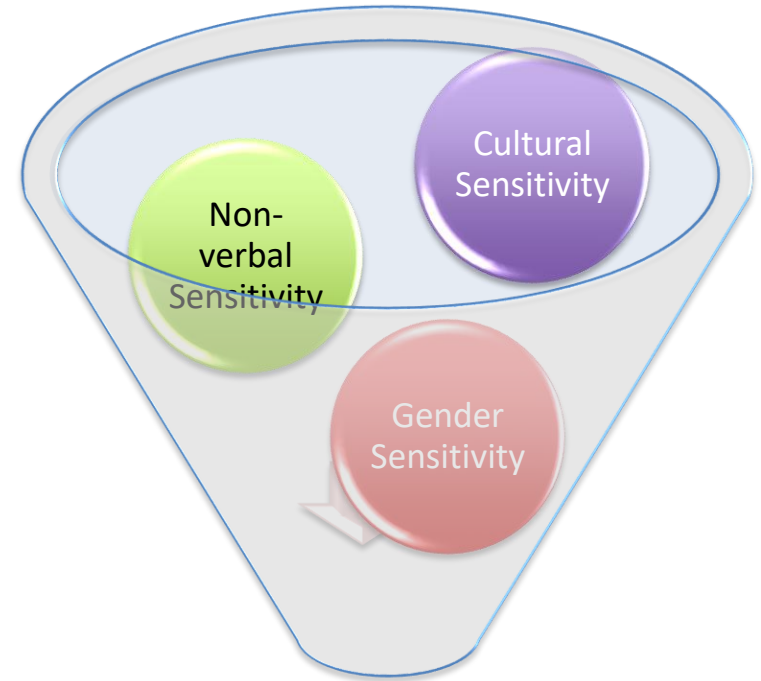
Frame strong arguments
Back your position with sound logic
Exploit your influencing factors

Signalling Skills – Learn to code and decode verbal and non-verbal signals that tend to contradict or differ from what is uttered.

Signal Type	Example	Meaning	Response
Qualifier	“We will not sign the agreement in that form.”	Show me a better version of the agreement.	“We can re-consider the paragraphs you take objection to...”
Concealed Appeal	“If only you’d listened to us in the last rounds.”	We’d be pleased to have some ritual apology first before getting on with it.	“Yes, we made an error. But we can still prevent the disaster”.
False Refusal	“We won’t be doing this contract until tomorrow.”	There’s still room – try harder.	“Thank you, I’ll see if I can come up with a better version in the last round.”
Hypothetical	“Let’s assume we sign the deal. Would you be able to meet the deadline?”	We’re interested but we don’t want to seem convincing yet.	“Absolutely, You just need to rest your confidence in us.”

Becoming a good negotiator calls for being a proficient communicator – one who is sensitive to the following:

- ❑ **Non-verbal signals** – Listen through what remains unsaid. Read the gestures, postures, eye contacts, appearance and tone.
- ❑ **Cultural diversity** – Show sensitivity to cultural differences.
- ❑ **Gender disparity** – Make room to accommodate the varied outlook of the heterogeneous genders in negotiation.



PRINCIPLED NEGOTIATION

Pillars of Principled Negotiation

People –
Separate the
people from the
problem

Interests – Focus
on interests, and
not positions

Options – Invent
multiple options
aiming at mutual
gains

Criteria – Stick to
certain principled
standards



Stratagems to Strike the Best Deal



- Introduce yourself confidently.
- Grab the power seat.
- Present decent and unaffected manners.



- Maintain personal tidiness, dress appropriately.
- Avoid loud makeup and strong perfumes.
- Keep papers, pens and other tools organized and handy.



- Manifest a positive outlook.
- Avoid using negatives for the opponent party.
- Focus on branding the exclusive ideas of your arguments.



- Adopt a flexible approach.
- Allow time, space and concessions for the other party.
- Avoid rigidity.

Resolving Deadlock

- ❖ Emphasize the consequences that could flow from a deadlock
- ❖ Allow no further relaxations
- ❖ Use the ethical aspect of the agreement
- ❖ Stay positive on a mutually agreed solution

Give the other party a deadline

Don't make the first bid

Use silence when necessary

Play it cool and light

Never respond too quickly to an offer

Be willing to walk away

Be courteous in victory

Be graceful in defeat

*“Let us never negotiate out of fear. But
let us never fear to negotiate.”*

John F. Kennedy

Thank You!

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